

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

MINUTES

May 12, 2026

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Department: 301

Case Number: CGC-25-631801

Nature of Cause:

DEFENDANTS CSAA INSURANCE
EXCHANGE, MICHAEL
CHAMBERS, and CARBONE,
SMITH & KOYAMA's MOTION TO
STRIKE Amended COMPLAINT.

Present:

Judge: CHRISTINE VAN AKEN
Reporter: N/A

Clerk: WILLIAM TRUPEK
Bailiff: N/A

Appearing for Plaintiff (s):

Franciscus Dylan Rosario, 650.488.7510
soltrinox@gmail.com Plaintiff, In Pro Per

Appearing for Defendant(s):

Tyler J. O'Connell, Esq., PORTER / SCOTT
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Attorney for Defendants, CSAA
INSURANCE EXCHANGE; CARBONE,
SMITH & KOYAMA; and MICHAEL R.
CHAMBERS

Hearing held. ARGUED. Court having reviewed the pleadings and having heard oral argument rules as follows:

DEFENDANTS CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, and
CARBONE, SMITH & KOYAMA's MOTION TO STRIKE Amended COMPLAINT.

Defendants' anti-SLAPP motion to strike is GRANTED. Defendants are entitled to fees and may make a separate motion or seek fees with their cost bill, but a request for a particular amount of fees for the first time on reply does not give sufficient notice.

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The court broadly construes the anti-SLAPP statute. (Code Civ. Proc., § 425.16, subd. (a).) Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows that the plaintiff's claims arise from protected activity (prong one), then the burden "shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success" (prong two). (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must make a "prima facie factual showing sufficient to sustain a favorable judgment." (*Id.*, at p. 385.) In performing its analysis, the court looks to the pleadings, declarations or affidavits, and judicially noticeable material concerning the facts upon which liability is based. (Code Civ. Proc., § 425.16, subd. (b)(2).)

"[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 [emphasis in original].) Defendants meet prong one of the anti-SLAPP statute. The First Amended Complaint ("FAC") arises from protected activity under Code of Civil Procedure, § 425.16, subd. (e)(2) ["any written or oral statement or writing made in connection with an issue under consideration or review by a...judicial body"]. "Statements made in litigation, or in connection with litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 803; *Navellier v. Sletten* (2002) 29 Cal.4th 82, 90 ["The constitutional right of petition encompasses the basic act of filing litigation."] [citation simplified]; *Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092 [equitable action to vacate a judgment triggered prong one of the anti-SLAPP statute].)

Here, plaintiff seeks to vacate a prior court judgment and recover "ancillary monetary relief" based on allegedly fraudulent litigation conduct. (FAC, 27:13-26.) The litigation conduct itself is the wrong that plaintiff complains of. The FAC specifically references protected litigation activity. (See, e.g., FAC, 10:18-19 ["CSAA Insurance Exchange, made multiple false and misleading representations to the Court..."]; FAC, 3:6-9["The defense obstructed Plaintiff's ability to present material evidence"]; FAC, 6:21-22 [Defense counsels' "conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment."].)

Plaintiff's citation to Code of Civil Procedure, § 425.17, subdivision (c) [commercial exemption] is inapposite. Plaintiff sues over litigation conduct, not commercial activity.

Since defendants meet prong one, the plaintiff must establish via admissible evidence a probability of prevailing on the claims (prong two). (See *Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.) At prong two, "a plaintiff must make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff's favor. This standard is similar to the standard used in determining motions for nonsuit, directed verdict, or summary judgment, in that the court cannot weigh the evidence. However, the plaintiff cannot simply rely on the allegations in the complaint, but must provide the court with sufficient evidence to permit the court to determine whether there is a probability that the plaintiff will prevail on the claim." (*Id.* [citation simplified].)

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Plaintiff does not meet his prong two. While plaintiff attempts to characterize his claim as an equitable action to vacate a judgment based on extrinsic fraud, it is really a non-cognizable claim based on intrinsic fraud.

“The extrinsic/intrinsic fraud rule is a doctrine developed in courts of equity governing the basis for successful collateral attack on a final judgment by way of an independent proceeding. The rule is that fraud internal to the adversary proceeding, such as perjury committed during trial or error or mistake during the trial, is intrinsic and is not a basis for relief; but fraud that prevented the trial of a claim or prevented the defrauded party from getting into court at all, is extrinsic to the proceeding and is a basis for relief. Obviously, where there has been little or no judicial time invested in trial of a cause or an issue, the factor of judicial economy which otherwise weighs in favor of finality is less strong, and the equitable considerations of fair hearing and of penalizing fraud weigh more compellingly.” (*Los Angeles Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7.) In this case, plaintiff is seeking to vacate a judgment after a full-blown trial and is even appealing the judgment. “Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471 [citation simplified].) Plaintiff complains that movants obstructed his ability to present evidence, but the issues he raises in the FAC were fully litigated in the trial court. (See RFJN Ex. E, Def’s MIL # 6; RFJN Ex. F, Def’s MIL # 8; RFJN Ex. G, Def’s MIL # 17; and RFJN Ex. H, Order re Trial Scheduling and MILs). Plaintiff presented his case, lost, and may pursue his appeal rights.

Civil Code § 47(b) [litigation privilege] does not bar a claim to vacate a claim to vacate a judgment based on extrinsic fraud. (*Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 [absolute litigation privilege bars derivative tort actions (including fraud) but does not eliminate the equitable remedy of vacating a fraudulently obtained judgment].) If plaintiff merely sought to vacate the judgment, there would be no need to name movants (insurer and defense counsel). The litigation privilege, however, does bar plaintiff’s request for “ancillary monetary relief,” which is really a claim for fraud damages against defendants. “The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Defendants establish these elements. “Any doubt about whether the privilege applies is resolved in favor of applying it.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) The privilege also “extends to noncommunicative acts that are necessarily related to the communicative conduct...” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065.)

The court grants defendants’ motion to strike the FAC in its entirety. Defendants may seek fees by separate motion. (Code Civ. Proc., § 425.16, subd. (c)(1).) The court does not consider plaintiff’s various supplemental opposition briefs, which were filed without authorization, but does consider plaintiff’s requests for judicial notice.

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Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the substantive portion of the tentative ruling in compliance with CRC 3.1312.

Judge: Christine Van Aken; Clerk: W. Trupek; Not Reported (301/CVA)

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